

1.

CASE #	CASE NAME	HEARING NAME
CVRI2307044	PLATAS vs GENERAL MOTORS LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Moving party: Plaintiff Lorraine Platas; represented by Goldsmith West

Responding party: Defendant General Motors, LLC; represented by Erskine Law, APC

Plaintiff Lorraine Platas brings this Song-Beverly action regarding a 2022 GMC Sierra 1500 with defects to the accelerator pedal and check engine light. The complaint, filed 12/4/23, asserts: (1) breach of the implied warranty of merchantability; (2) breach of the implied warranty of fitness; (3) breach of express warranty; (4) failure to promptly repurchase product; (5) failure to commence repairs within a reasonable time; (6) failure to complete repairs within 30 days; (7) failure to maintain sufficient service and repair facilities; (8) failure to make service literature and parts available; (9) negligence; (10) Civil Code § 1796.5.

Plaintiff moves for attorney fees and costs of \$70,868.42 consisting of \$58,085.85 in lodestar, \$5,808.59 in a 1.1 multiplier, and costs of \$6,973.98. Plaintiff argues that as the prevailing party, she is entitled to recover her fees and costs. She contends the hourly rates and time spent are reasonable. She requests a 1.1 multiplier based on the contingency risk and delay of payment.

In opposition, Defendant contends that the motion is untimely under *Hatlevig v. General Motors, LLC* (2026) 118 Cal.App.5th 644, since the court automatically dismissed the case on 12/4/25. It argues counsel should not recover time spent on the UCL and conversion claims. It contends the court should reduce counsel's request to fees actually and reasonably incurred, and challenges various entries. It asserts that a multiplier is not warranted. It requests the court award no more than \$27,925 in fees.

In reply, Plaintiff contends the court should consider the policy objectives of Song-Beverly and of Code of Civil Procedure section 998. She argues the motion is not untimely, because Plaintiff filed a notice of conditional settlement, and there is a stipulation for the trial court to decide the attorney fees. She points out the court vacated the dismissal. She repeats that the hourly rates are reasonable, and Defendant has not rebutted the reasonableness of the time spent. She otherwise repeats the arguments from the moving papers.

Analysis

Under Civil Code § 1794(d) (Song-Beverly Act), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Here, the parties apparently settled with the court to decide fees.

First, Defendant contends the motion is untimely. The parties dispute whether this motion is untimely pursuant to *Hatlevig v. General Motors* (2026) 118 Cal.App.5th 644. After the plaintiff

notified the court of a settlement, the court set a dismissal within 45 days (i.e. 8/15/23) unless the parties showed good cause why the case should not be dismissed; neither party demonstrated good cause and the court dismissed the action. (*Id.* at 646-647.) The court held that the motion for attorney fees must be served and filed pursuant to Cal. R. Ct., rule 3.1702, which must be served and filed within the time for a notice of appeal, i.e. 60 days after service of notice of entry of judgment or 180 days after entry of judgment. (*Id.* at 649.) “A voluntary dismissal, though not appealable, starts the clock running on the time to move for attorney fees when the dismissal concludes the litigation and triggers a right to fees.” (*Id.* at 649.) The court found that the date of notice of dismissal was 8/15/23, and the plaintiff untimely served his motion after the 180 days. (*Id.* at 650.) Here, Defendant errs in the dismissal date. The court dismissed the action on 3/9/26. Accordingly, the motion is timely—even without setting aside the dismissal.

At issue in this motion is the reasonableness of Plaintiff’s request. The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney's fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel’s declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney’s fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney’s fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

Counsel’s lodestar is incorrect. The correct lodestar is as follows:

Attorney	Hourly Rate	Hours	Total
David Goldsmith (attorney)	\$592.32	50.75	\$29,912.16
Erika Kavicky (attorney)	\$615.00	.25	\$153.75
Issac Agyeman (attorney)	\$540.82	20.5	\$11,086.81
Phuc Minh (Peter) Le (attorney)	\$437.80	31.85	\$14,600.63
Galyn Bradshaw (paralegal)	\$200.00	5.1	\$1,020.00

Lasha Alvarez (paralegal)	\$200.00	1.2	\$240.00
Leilani Alexander (paralegal)	\$150.00	1.7	\$255.00
Elizabeth De Jesus Gutierrez (paralegal)	\$150.00	.2	\$30.00
Michelle Karpathy (paralegal)	\$150.00	1.1	\$165.00
MAS (unknown)	\$200.00	2.4	\$480.00
FC (unknown)	\$150.00	.95	\$142.50
TOTAL		116	\$58,085.85

First, counsel provides no information about MAS and FC. Accordingly, there will be no recoupment for those fees.

Second, the hourly rates are excessive. A reasonable rate is \$150 for a paralegal, \$375 for an attorney, \$450 for a senior attorney and \$550 for a partner.

Third, the time spent is excessive. The court reduces the hours as follows:

- Time spent on the demurrer that ultimately was not heard because Plaintiff dismissed. The court reduces DAG's time by 1.1 hours (1/11/24, 2/9/24, 3/25/24, 3/26/24, 3/26/24).
- Paralegal time that was clerical in nature. The court reduces LA's time by .5 (7/5/24, 8/6/24), GB's time by 2.75 (8/11/25, 9/16/25, 9/26/25).
- Trial documents is excessive. The court reduces IA's time by 3.0 hours (9/18/25, 9/27/25)
- Motions in limine time is excessive. The court reduces IA's time by 2.75 (9/24/25, 9/26/25).
- Motions to compel is excessive. The court reduces PL's time by 3.0 (9/24/25, 9/25/25)

Attorney	Hourly Rate	Hours	Total
David Goldsmith (attorney)	\$550	49.65	\$27,307.50
Erika Kavicky (attorney)	\$550	.25	\$137.50
Issac Agyeman (attorney)	\$450	14.75	\$6,637.50
Phuc Minh (Peter) Le (attorney)	\$375	28.85	\$10,818.75
Galyn Bradshaw (paralegal)	\$150	2.35	\$352.50
Lasha Alvarez (paralegal)	\$150	.7	\$105.00
Leilani Alexander (paralegal)	\$150	1.7	\$255.00

Elizabeth De Jesus Gutierrez (paralegal)	\$150	.2	\$30.00
Michelle Karpathy (paralegal)	\$150	1.1	\$165.00
TOTAL		99.55	\$45,808.75

The purpose of the lodestar enhancement is “to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis.” (*Ketchem v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation.” (*Id.*) The court finds that this was a typical lemon law case with no exceptional quality of representation. No multiplier is awarded.

As for costs, Plaintiff filed a memorandum of costs. Defendant’s remedy was to file a motion to tax costs.

Grant motion and award fees of \$45,808.75. Grant and award all costs in the amount of \$6,973.98.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2406954	HUNT vs RIVERSIDE COUNTY OFFICE OF EDUCATION	MOTION TO COMPEL DEFENDANT RIVERSIDE COUNTY OFFICE OF EDUCATION TO PROVIDE FURTHER RESPONSES TO FORM INTERROGATORIES

CASE #	CASE NAME	HEARING NAME
CVRI2406954	HUNT vs RIVERSIDE COUNTY OFFICE OF EDUCATION	MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES (SET TWO)

CASE #	CASE NAME	HEARING NAME
CVRI2406954	HUNT vs RIVERSIDE COUNTY OFFICE OF EDUCATION	MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSIONS (SET ONE)

Tentative Ruling:

Moving party: Plaintiff Pertina Hunt
Responding party: Defendant Riverside County Office of Education